Master Services Agreement

This Master Services Agreement (this "**Agreement**") is dated May 6, 2026 (the "**Effective Date**") and entered into by **Delta Engineering Partners, LLC**, a Delaware limited liability company ("**Delta**" or "**Vendor**"), and **Foxtrot BioPharma, Inc.**, a Delaware corporation ("**Foxtrot**" or "**Customer**"). Each is a "**Party**" and they are collectively the "**Parties**."

1. Engagement; Statements of Work

Customer engages Vendor to perform engineering and consulting services as specified in mutually executed Statements of Work ("**SOWs**"). Each SOW shall reference this Agreement and set forth the scope, fees, payment schedule, deliverables, acceptance criteria, milestones, and any project-specific terms. This Agreement governs each SOW; in the event of conflict, the SOW prevails for project-specific scope and timeline matters but this Agreement controls for legal and risk-allocation terms.

2. Payment Terms

Customer shall pay Vendor's invoices **net fifteen (15) days** from the invoice date. **Fees are payable on a milestone basis**, with each SOW specifying the milestones and the percentage of total SOW value payable upon achievement of each milestone (typically: 25% upon SOW execution, 25% upon scope-freeze, 25% upon delivery of first acceptance candidate, 25% upon final acceptance).

Vendor shall invoice Customer within five (5) business days after achieving each milestone. Customer may dispute a milestone invoice in good faith with written notice within seven (7) days of receipt; the Parties shall promptly meet to resolve. Undisputed amounts not paid within fifteen (15) days of the invoice date accrue interest at one and one-half percent (1.5%) per month or the maximum lawful rate.

Vendor's fees are exclusive of taxes; Customer is responsible for applicable taxes other than those on Vendor's net income.

3. Intellectual Property; Ownership of Deliverables

All Deliverables created by Vendor specifically for Customer under an SOW are **works made for hire** under U.S. copyright law to the maximum extent permitted; to the extent any Deliverable does not so qualify, Vendor hereby assigns to Customer all right, title, and interest in and to such Deliverables, including all intellectual property rights therein.

Vendor retains all right, title, and interest in its pre-existing intellectual property, generally applicable tools, methodologies, frameworks, libraries, and

know-how ("Vendor Background IP") that Vendor uses or incorporates into a Deliverable. Vendor grants Customer a **perpetual, royalty-free, non-exclusive, worldwide license** to use any Vendor Background IP incorporated into a Deliverable solely as part of and to the extent necessary to use the Deliverable.

Customer's pre-existing intellectual property remains Customer's exclusive property; Customer grants Vendor a limited license to use Customer's intellectual property solely as necessary to perform the Services.

4. Warranties

Vendor warrants that: (a) the Services will be performed in a professional and workmanlike manner consistent with the highest applicable industry standards; (b) the Deliverables will conform to the specifications and acceptance criteria set forth in the applicable SOW; (c) the Deliverables will be **fit for the intended purpose** described in the applicable SOW; (d) the Deliverables will not infringe any third-party intellectual property rights; and (e) Vendor has all necessary authority to enter into this Agreement and grant the rights herein.

The warranties in this Section 4 are in addition to (and do not displace) any implied warranties of merchantability or fitness for a particular purpose that apply by operation of law and cannot be effectively disclaimed in the relevant jurisdiction.

Customer's remedies for breach of these warranties include (in Customer's discretion): re-performance of the Services, replacement of non-conforming Deliverables, refund of fees paid for the non-conforming work, or other remedies available at law or in equity, subject to the limitation of liability in Section 6.

5. Indemnification

Vendor shall defend, indemnify, and hold harmless Customer from and against any third-party Losses arising out of: (a) any third-party claim that a Deliverable infringes such third party's intellectual property rights; (b) Vendor's breach of any representation or warranty in this Agreement; (c) Vendor's negligence or willful misconduct in performing the Services; (d) bodily injury or property damage caused by Vendor's personnel; or (e) Vendor's violation of any applicable law in connection with the Services.

Vendor's indemnification obligations are capped at two (2) times the fees paid by Customer under the applicable SOW in the twelve (12) months preceding the event giving rise to liability, except for indemnification arising from (i) Vendor's willful misconduct, (ii) bodily injury or death, or (iii) intentional infringement of intellectual property — in which cases the cap does not apply.

Customer has no corresponding indemnification obligation to Vendor under this Agreement, except as may be expressly stated in an SOW.

6. Limitation of Liability

EXCEPT FOR (A) VENDOR'S INDEMNIFICATION OBLIGATIONS (SUBJECT TO THE 2x CAP IN SECTION 5), (B) AMOUNTS OWED FOR SERVICES RENDERED, (C) A PARTY'S BREACH OF CONFIDENTIALITY, AND (D) A PARTY'S GROSS NEGLIGENCE, WILLFUL MISCONDUCT, BODILY INJURY, OR INTENTIONAL INFRINGEMENT, **EACH PARTY'S AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED TWO (2) TIMES THE FEES PAID UNDER THE APPLICABLE SOW IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO LIABILITY.**

NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

7. Term and Termination

This Agreement commences on the Effective Date and continues until terminated. **Either Party may terminate this Agreement for convenience on thirty (30) days' written notice.** Either Party may terminate for cause if the other Party materially breaches this Agreement and fails to cure within fifteen (15) days after written notice of the breach.

Termination for convenience entitles Vendor to payment for all Services performed and Deliverables produced through the termination effective date, plus reimbursement of any non-cancellable third-party commitments Vendor made in good-faith reliance on the SOW. Termination of this Agreement does not affect SOWs in progress unless expressly stated; if an SOW is terminated mid-engagement, Customer takes possession of all in-progress Deliverables as-is.

Sections 3, 5, 6, 8, and 11 survive termination.

8. Confidentiality

Each Party shall protect the other Party's confidential information using **the highest degree of commercial care reasonable under the circumstances**, including physical, electronic, and administrative safeguards consistent with industry-leading practices. Confidentiality obligations survive for five (5) years following termination (indefinitely for trade secrets).

9. Governing Law; Forum

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws principles. The Parties consent to the exclusive jurisdiction of the state and federal courts located in Wilmington, Delaware.

10. Miscellaneous

Entire Agreement. This Agreement, together with all SOWs, is the entire agreement of the Parties.

Amendments. Amendments must be in a writing signed by authorized representatives of both Parties.

Assignment. Neither Party may assign this Agreement without the other's prior written consent, except to an affiliate or to a successor in interest in connection with a merger or acquisition.

Independent Contractor. Vendor is an independent contractor.

Counterparts; Electronic Signature. This Agreement may be executed in counterparts and via electronic signature.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

DELTA ENGINEERING PARTNERS, LLC	FOXTROT BIOPHARMA, INC.
By: ________	By: ________
Name: Dr. Sanjay Mehta	Name: Catherine O'Brien
Title: Managing Partner	Title: Chief Technology Officer